



CHAPTER i.

An Act for enabling the Western Trust Limited to re-arrange its capital and to provide for the extinction of its B shares and for issuing ordinary shares in lieu thereof and for altering the memorandum and articles of association of the Company and for other purposes.

A.D. 1903.

[30th June 1903.]

WHEREAS the Western Trust Limited (in this Act called “the Company”) was incorporated in the year one thousand eight hundred and ninety-six under the provisions of the Companies Acts 1862 to 1890 as a company limited by shares :

And whereas the capital of the Company is two hundred and fifty thousand pounds divided into four hundred and ninety thousand ordinary shares of ten shillings each and ten thousand B shares of ten shillings each whereof there have been issued thirty-nine thousand ordinary shares and eight thousand nine hundred and fifty B shares which are now registered in the names of the shareholders :

And whereas the sum of five shillings per share has been called up and paid on all the said ordinary shares and B shares of the Company which have been issued :

And whereas the respective rights of the ordinary and B shareholders of the Company are defined in the memorandum of association of the Company to be as follows :—

“ v. The capital of the Company is two hundred and fifty thousand pounds divided into four hundred and ninety thousand ordinary shares of ten shillings each and ten thousand B shares of ten shillings each :

“ vi. Until the dividends actually declared on the ninety thousand ordinary shares which are to form the first issue of ordinary shares in the Company shall in the aggregate amount to a sum equal to the capital paid up thereon the

A.D. 1903.
—

“ profits of the Company which it shall from time to time
“ be determined to distribute as dividend shall be applied—

“ Firstly to the payment of dividend on any shares ranking
“ in priority to the ordinary shares ;

“ Secondly of the residue ninety per cent. shall be applied to
“ the payment of dividend on the ordinary shares ; and

“ Thirdly the remaining ten per cent. shall be applied to the
“ payment of dividend on the B shares in proportion
“ to the capital paid up thereon respectively :

“ VII. After the happening of the event aforesaid and
“ from thenceforth the profits of the Company which it shall
“ from time to time be determined to distribute as dividend
“ shall be applied as to one half to the payment of dividend on
“ the shares other than the B shares aforesaid and as to the
“ other half to the payment of dividend on the B shares in
“ proportion to capital paid up thereon :

“ VIII. In the case of the winding up of the Company
“ before the happening of the event aforesaid the assets
“ available for distribution in respect of the ordinary shares
“ and the B shares shall be applied—

“ First as to ninety per cent. the same shall be divided
“ amongst the holders of the ordinary shares in pro-
“ portion to the capital paid up thereon ; and

“ Secondly the remaining ten per cent. shall be divided
“ amongst the holders of the B shares in proportion to
“ the B shares held by them respectively :

“ IX. In the case of a winding up of the Company after
“ the happening of the event aforesaid the assets available for
“ distribution in respect of the ordinary shares and the B
“ shares shall be divided as to one half amongst the holders
“ of the ordinary shares and as to the other half amongst the
“ B shares :

“ X. The B shares shall confer on the holders present in
“ person or by proxy at any general meeting of the Company
“ the right to as many votes as the number of votes conferred
“ by all the other shares for the time being issued and each
“ holder of B shares present in person or by proxy at any such
“ meeting shall be entitled to such proportion of the votes
“ conferred by the B shares collectively as the number of his
“ B shares bears to the full number of the B shares :

“ XI. The rights hereby attached to the B shares shall
“ be alterable in manner provided for in clause 51 of the
“ accompanying articles of association but not otherwise :

“ XII. The shares in the initial capital not forming part
“ of the first issue aforesaid and not subscribed for by the
“ memorandum of association and also any shares created by
“ increase of capital may be divided into several classes and
“ may be issued with any preferential special or qualified
“ rights privileges and conditions attached thereto but so that
“ the rights hereby attached to the B shares shall not be
“ altered or infringed except as above mentioned ” :

And whereas article 51 of the articles of association of the Company is as follows :—

“ Whenever the capital is divided into different classes
“ of shares all or any of the rights and privileges attached
“ to each class may be modified by agreement between the
“ Company and any person purporting to contract on behalf
“ of that class provided such agreement is ratified in writing
“ by the holders of at least three fourths of the shares of
“ that class ” :

And whereas the holders of upwards of three fourths of the B shares have assented in writing to their rights as to dividends and capital being altered as set forth in this Act :

And whereas the Company has resolved that the rights of the holders of the B shares and the rights of the holders of the ordinary shares of the Company (inter se) should be modified or varied from those conferred by the memorandum of association of the Company in manner hereinafter provided :

And whereas the Company are desirous and it is expedient that the modifications of such rights should be carried into effect as hereinafter set forth :

And whereas it is expedient that the B shares of the Company should be extinguished and that the Company should be authorised to issue to holders of the B shares (in extinguishment of their rights) new ordinary shares of the Company with five shillings per share paid up thereon as hereinafter provided :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the *Western Trust Limited* Short title.
Act 1903.

A.D. 1903.

Alteration of
memorandum
and articles
of association
and provi-
sions as to
shares of
Company.

2. From and after the passing of this Act—

- (1) Clauses V VI VII VIII IX X XI and XII of the memorandum of association of the Company shall be and the same are hereby cancelled and annulled and all references in the articles of association of the Company to the B shares of the Company shall be and the same are hereby also cancelled and annulled and the memorandum and articles of association of the Company shall be and the same are hereby amended to conform with the provisions of this Act:
- (2) The capital of the Company shall be two hundred and fifty thousand pounds divided into five hundred thousand ordinary shares of ten shillings each. Provided always that the Company may from time to time increase or reduce the capital of the Company in manner provided by the regulations for the time being of the Company:
- (3) The B shares of the Company and all rights and privileges in respect thereof shall be and the same are hereby extinguished and every holder of such shares shall forthwith after the passing of this Act surrender to the Company for cancellation the certificates or certificate representing the B shares of the Company held by him:
- (4) The Company is hereby authorised and directed to create and issue eight thousand nine hundred and fifty new ordinary shares of ten shillings each and the sum of five shillings shall be deemed to have been paid up on each of the said new ordinary shares and the Company shall upon the surrender of certificates as aforesaid by each holder of B shares of the Company allot to him such a number of the said ordinary shares as shall be equal to the number of the B shares comprised in the certificates or certificate so surrendered by him and the Company shall issue to him a certificate for such new shares:
- (5) Such new shares and the original ordinary shares of the Company shall form one class and shall as regards dividends capital voting and in all other respects rank *pari passu*:
- (6) The shares in the capital for the time being of the Company (not forming part of the thirty-nine thousand ordinary shares of the Company issued as aforesaid before the passing of this Act or of the eight thousand nine hundred and fifty ordinary shares of the Company by this

Act directed to be issued in lieu of the B shares of the Company) may be divided into several classes and may be issued as ordinary shares or with any preferential special or qualified rights privileges and conditions attached thereto.

A.D. 1903.
—

3. Trustees executors administrators and all other holders in any representative or fiduciary capacity of B shares of the Company are hereby expressly authorised to accept and hold any ordinary shares issued in substitution therefor under the powers of this Act.

Trustees &c.
of B shares
authorised
to hold
substituted
shares.

4. From and after the passing of this Act in any instrument executed before the passing of this Act references to the B shares of the Company shall be construed as references to the ordinary shares of the Company issued in substitution for the same as aforesaid and in the case of any testamentary instrument executed before the passing of this Act any disposition which but for the passing of this Act would have operated as a specific bequest of any such first-mentioned shares shall be construed as a specific bequest of the ordinary shares of the Company issued in substitution as aforesaid which may be vested in the testator at the time of his decease or of a proportionate part thereof respectively as the case may be.

Reference
to shares in
instruments.

5. Ordinary shares substituted as aforesaid shall be held on the same trusts and subject to the same charges and liabilities as those on and subject to which the B shares in substitution for which the same are issued were held before the substitution and every deed or other instrument and every testamentary or other disposition of or affecting such B shares shall take effect with reference to the whole or a proportionate part as the case may be of the ordinary shares issued in substitution therefor.

Ordinary
shares to be
held on
same trusts
as B shares.

6. Save as in this Act expressly provided nothing in this Act shall prejudice alter or affect the memorandum or articles of association of the Company or shall be deemed to render valid or invalid any act done or proceedings pending by or against the Company before or at the passing of this Act.

General
saving.

7. The Company shall deliver to the Assistant Registrar of Joint Stock Companies for Ireland a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly

Copy of Act
to be deli-
vered to
Assistant
Registrar of
Joint Stock
Companies
for Ireland.

A.D. 1903. and wilfully authorises such default shall incur the like penalty
— Every penalty under this section shall be recoverable summarily.

There shall be paid to the said Assistant Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Copy of Act
to be sup-
plied to
members.

8. To every copy of the memorandum and articles of association of the Company supplied after the passing of this Act to any member under the provisions of section 19 of the Companies Act 1862 there shall be annexed a copy of this Act which for the purposes of that section shall be treated as part of the memorandum and articles of association of the Company.

Costs of Act.

9. All costs charges and expenses of or incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C.; or
OLIVER AND BOYD, EDINBURGH; or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.